SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 10
Honorable Frederick S. Chung
Rachel Tien, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: June 12, 2025 TIME: 9:00 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.
Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling, in accordance with California Rule of Court 3.1308(a)(1) and Local Rule 8.E.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	24CV446658	Miguel Velazquez et al. v. Aurora Munoz et al.	Click on LINE 1 or scroll down for ruling in lines 1-2.
LINE 2	25CV457441	J. Ascencion Calderon et al. v. Miguel Velazquez et al.	Click on LINE 1 or scroll down for ruling in lines 1-2.
LINE 3	21CV391604	Dorothy Ramirez et al. v. Suzanne Ramirez et al.	Click on LINE 3 or scroll down for ruling.
LINE 4	24CV444616	JPMorgan Chase Bank, N.A. v. David P. Poly	Motion for RFAs to be deemed admitted: notice is proper, and the motion is unopposed. Because defendant has apparently not served any responses to the RFAs, the court finds good cause to GRANT the motion. Moving party to submit proposed order.
LINE 5	24CV449517	Wells Fargo Bank, N.A. v. Aghiles Drif	Motion for RFAs to be deemed admitted: the court recently signed a stipulated judgment and dismissed this case. The motion is MOOT, and the June 30, 2025 trial date is VACATED.

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Calendar Lines 1-2
Case Names: *Miguel Velazquez et al. v. Aurora Munoz et al.* and *J. Ascencion Calderon et al. v. Miguel Velazquez et al.*
Case Nos.: 24CV446658 and 25CV457441

On May 13, 2025, the Civil Division Supervising Judge, Judge Pennypacker, issued an order to show cause to the parties regarding consolidation of these two cases, setting a hearing for June 12, 2025. The undersigned has now reviewed the submissions of the parties—the opening brief of J. Ascension Calderon and Mabiela Calderon (the "Calderons"), filed May 20, 2025; the opening brief of Aurora Munoz and Jose Munoz (the "Munozes"), filed May 20, 2025; and the responsive brief of Miguel Velazquez and Maria Velazquez (the "Velazquezes"), filed May 30, 2025—and concludes that the cases should be consolidated.

Ordinarily, the court is loath to consolidate an unlawful detainer case with a regular unlimited civil case. As the Calderons and Munozes both emphasize (rather repetitively in their briefs), unlawful detainer cases are unique, summary proceedings for the possession of leased premises. (See Code Civ. Proc., §§ 1161, 1161.1.) With few exceptions, they are given statutory "precedence over all other civil actions," and they are governed by exceptionally short deadlines for the setting of trial. (Code Civ. Proc., § 1179a; see also Code Civ. Proc., § 1170.5 [trial must be set no later than the 20th day after the request to set the trial is made].) As a result, consolidating an unlawful detainer case with a regular civil case will almost always cause a tremendous delay in resolving the issue of possession, given that regular civil cases often take a minimum of one or two years to go to trial. As the unlawful detainer plaintiffs, the Calderons argue that they will be prejudiced by such a delay.

On the other hand, when complicated ownership issues arise involving allegations of fraud, those issues will usually need to be resolved before the issue of possession can be addressed, and an unlawful detainer case is not a suitable forum for litigating such ownership issues. (See *Asuncion v. Superior Court of San Diego County* (1980) 108 Cal.App.3d 141, 145-146 (*Asuncion*); *Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 393-395 (*Martin-Bragg*).) In *Asuncion*, which was decided when unlawful detainer cases were still heard in municipal courts rather than superior courts, the Court of Appeal noted: "[T]itle to the property is inevitably in issue in this unlawful detainer action, and the action is not within the jurisdiction of the municipal court." The Court therefore ordered the case transferred to the superior court, where the superior court would either "stay the eviction proceedings until trial of the fraud action" or order "consolidation of the actions." (*Asuncion*, 108 Cal.App.3d at pp. 146-147.) Similarly, in *Martin-Bragg*, the Court of Appeal, relying in part on *Asuncion*, confirmed that "adjudication of complex issues of title to property should not be forced to adhere to the strictures that apply to summary proceedings for unlawful detainer." (*Martin-Bragg*, 219 Cal.App.4th at p. 393.) Thus, in that case, it was an abuse of discretion for the trial court to resolve the disputed ownership question within the summary unlawful detainer proceeding. (*Id.* at pp. 393-395 [reiterating the possibility of consolidation or a stay, in the trial court's discretion].)

Here, we have an unlimited civil case filed by the Velazquezes against the Munozes and the Calderons on September 4, 2024 (Case No. 24CV446658), and an unlawful detainer case filed more than four and a half months later (January 28, 2025) by the Calderons against the Velazquezes.[1] In the unlimited case, the Velazquezes assert quiet title, misrepresentation, concealment, and fraudulent inducement causes of action, among others. Accordingly, this is precisely the type of situation in which *Asuncion* and *Martin-Bragg* suggest that the trial court should consider consolidation or a stay of the unlawful detainer case.

Both the Calderons and the Munozes repeatedly argue that rather than claiming ownership of the property at issue, the Velazquezes are merely "asserting that they had a right to purchase the Property from the prior owner." (See, e.g., Calderons' Opening Brief, pp. 10:9-10, 10:17-18, and 13:14-15; Munozes' Opening Brief, pp. 1:7-8, 8:20-21, 9:11-12, and 10:2-3.) The court finds this repeated incantation of a "right to purchase" to be a purposeful mischaracterization of the claim. The complaint in Case No. 24CV446658 expressly alleges that the Velazquezes have an ownership interest in the property based on an agreed-upon down payment of $120,000, as well as payments of the mortgage, property taxes, insurance, maintenance, and various improvements to the property over a number of years. (See Complaint, ¶¶ 15-40.) The complaint also expressly alleges that the Munozes and the Calderons colluded in the sale of the property "for half its value," without the knowledge of the Velazquezes. (E.g., *id.* at ¶¶ 85-86.) Without expressing any opinion regarding the merits of the Velazquezes' allegations, the court finds that they have alleged colorable causes of action for quiet title and fraud, and not merely a "right to purchase."[2]

The court also takes issue with the Munozes' mischaracterization of Judge Williams's December 16, 2024 preliminary injunction order, wherein they assert, in their introduction to the opening brief, that "Judge Helen Williams has already concluded that there is no likelihood of success on the merits of the Velasquezes' [sic] frivolous claims in the unlimited civil action." (Munozes' Opening Brief, p. 1:9-11.) This is not accurate. The December 16, 2024 order states that the court "has considered the Plaintiffs' likelihood of prevailing on the merits" and concludes that "Plaintiffs did not show sufficient merit or rebuttal as to [the Calderons'] claimed status as bona fide purchasers." (December 16, 2024 Order, p. 2:8-14.) This is not the same as saying that there is "no" likelihood of success—it merely addresses the sufficiency of the Velazquezes' showing—and it says nothing at all about the merits of the Velazquezes' allegations against the Munozes. Moreover, it appears that the primary basis for Judge Williams's ruling was the balance of harms: that the Calderons "would be most harmed by the granting of the requested preliminary injunction." (*Id.* at p. 2:12-13.) In addition, Judge Williams stated that the Velazquezes' claims against the Munozes could be compensated by money damages.

The adequacy of money damages as a remedy works both ways here. It also applies to the Calderons' claims against the Velazquezes, as the Calderons themselves appear to acknowledge in making their alternative request that consolidation be "conditioned upon the payment of rent," with the Velazquezes "depositing with the court or into escrow at least

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[1] The Munozes and the Calderons both erroneously state the filing date of the unlimited civil case as September 10, 2024.

[2] The Munozes and the Calderons appear to be under the misimpression that the court can resolve material factual disputes—such as whether the Calderons were actually bona fide purchasers, whether the Munozes and Calderons were close friends and colluded with each other, or whether the Velazquezes' $120,000 down payment on the property is exceeded by underpayment of rent "over the last 17 years"—on a motion to consolidate. Rather, the court's focus is on whether there are "common question[s] of law or fact" that must ultimately be decided. (Code Civ. Proc., § 1048, subd. (a).)

$4,150 a month in rent." (Calderons' Opening Brief, pp. 13:19-15:3.) The Velazquezes respond that they "would is [sic] more the willing [sic] to provide a rental value and an undertaking to make sure the Calderon[s'] rights are preserved and protected throughout the stay." (Velazquez Brief, p. 7:23-26.) The Velazquezes appear to disagree that the amount should be $4,150 per month, noting that there are other circumstances that "may offset" the rent, but they do not provide any concrete basis upon which the court can identify any amount other than what they previously had paid on a monthly basis.

Accordingly, the court ORDERS that these cases be consolidated, that the Velazquezes deposit a rental payment of $4,150 per month into escrow for as long as they continue to occupy the property (or until further order of the court), and that these cases be set for a trial setting conference on July 22, 2025 at 10:00 a.m. in Department 10. In advance of the trial setting conference, the parties must meet and confer regarding their availability for trial approximately 9-10 months from July 22.

It is so ordered.

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Calendar Line 3
Case Name: *Dorothy Ramirez et al. v. Suzanne Ramirez et al.*
Case No.: 21CV391604

This is a motion by plaintiffs Dorothy Ramirez and Jonathan Ramirez for a protective order to limit the number of special interrogatories and requests for admissions ("RFAs") by the other side.

Defendant Suzanne Ramirez (now known as Suzanne Rodda) propounded 264 special interrogatories and 97 RFAs on Dorothy Ramirez, and she propounded 270 special interrogatories and 89 RFAs on Jonathan Ramirez. Normally, in an "unlimited" civil case, the presumptive limit for special interrogatories and RFAs is 35 of each per party, and so these numbers are quite extreme. Although a litigant may go beyond the presumptive limit if there is good cause to do so, the circumstances here do not support going more than seven and a half times beyond a typical civil case (for interrogatories) and nearly three times beyond for RFAs. The court finds that the burden or expense of responding to these special interrogatories and RFAs "clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.020, subd. (a).)

Plaintiffs argue that there is not much to be learned, if anything, through these discovery requests (Memorandum, p. 4:9-12), and the court agrees. This case is over three and a half years old; the parties have already engaged in extensive discovery and motion practice; and this is not a complex case. The special interrogatories were apparently drafted by mechanically going through each factual allegation in the complaint and then asking the same questions about that allegation. Although a party is certainly entitled to ask contention interrogatories, the foregoing rote approach does not reflect a thoughtful and judicious use of the discovery tools at a party's disposal.

In response to the motion, defendant fails to provide any explanation as to why 361 interrogatories and RFAs are needed (or even potentially useful) as to Dorothy Ramirez, and why 359 interrogatories and RFAs are needed or useful as to Jonathan Ramirez. In fact, defendant's primary argument appears to be that plaintiffs already provided unverified answers to these requests, so it must not have been unduly burdensome to respond to them. But defendant does not concede that plaintiffs' answers are sufficient—in fact, she suggests that further meet-and-confer discussions are necessary to "finalize them"—and so this argument is of little consequence. (Opposition, p. 3:7-8.)

In the end, because of a failure to even attempt to justify this many requests on the part of defendant Rodda, the court is left with the overriding impression that defendant (or her counsel) has been using written discovery to overwhelm plaintiffs with volume rather than trying to advance the truth-seeking purpose of written discovery.

For the foregoing reasons, the court GRANTS the motion and orders that defendant be limited to propounding 35 special interrogatories and 35 RFAs to each plaintiff.

Finally, the court notes that plaintiffs have requested $4,060.00 in monetary sanctions—$2,400 for the opening brief, $60 for the filing fee, and $1,600 for the reply brief. The court finds this amount to be excessive, given the straightforward nature of this motion. The court will instead order monetary sanctions of **$1,660.00** (representing four hours at